

TERMS AND CONDITIONS OF THE USLY MOBILE APP

§ 1. General provisions

1. These Terms and Conditions set out the rules for using the USLY mobile app (the “App”).
2. The owner and administrator of the App is **PUGUA Sp. z o.o.**, with its registered office at Byszewska 37R, 92-770 Łódź, KRS: 0001175035, NIP: 7282900556, hereinafter referred to as the “Administrator”.
3. The App is designed to facilitate networking between users, participation in events and the use of social features provided by the Administrator.
4. Use of the App constitutes acceptance of these Terms and Conditions and the Privacy Policy. By using the App, the user (‘User’) agrees to comply with these terms and conditions, and by registering an account on the App, confirms the conclusion of a contract with the Administrator on the terms set out in these Terms and Conditions.
5. The rules governing the processing of personal data are set out in the Privacy Policy available within the App. The Privacy Policy forms an integral part of the agreement with the Administrator. Use of the App implies that you have read and understood the Privacy Policy.
6. The User should familiarise themselves with the terms of these Terms and Conditions before registering and starting to use the App, and also each time they log in.
7. The Controller reserves the right to amend these terms and conditions, of which it will notify Users on each occasion. If a User does not agree to the amendments to the Terms and Conditions, they should cease using the App and delete their registered Account.
8. Definitions:

Administrator – the entity that owns and operates the App,

Application – the USLY mobile application, enabling Users to make contacts, meet new people and participate in social interactions with other Users based on location and the features available within the application;

Personal data – any information relating to an identified or identifiable natural person within the meaning of the applicable data protection legislation;

Account – a User’s individual profile created within the App, enabling the use of specific features, in particular creating a profile, communicating with other Users and managing settings;

Location – geographical data relating to the location of the User’s Device, collected with the User’s consent to enable the use of App features related to searching for people or events nearby;

Payment Plan – a subscription-based payment model under which the User pays a recurring monthly fee for uninterrupted access to the App’s features and content. This ensures automatic renewal of access without the need to authorise each transaction individually;

Profile – a set of information provided by the User as part of an Organiser’s or Companion’s Account, specifically including identification details, a description, location, photograph or avatar, interests and other information voluntarily entered by the User;

Organiser – an Application user profile, also referring to a venue or company that creates Events and publishes information about them in the Application. By interacting with other Users, the Organiser seeks people wishing to take an active part in an Event. The Organiser bears full responsibility for the organisation and conduct of the Event;

Terms and Conditions – a document published by the Administrator in the App, setting out the rules for using the App and the rights and obligations of Users and the Administrator; acceptance of these Terms and Conditions constitutes the conclusion of a contract for the provision of the Service;

Trainer – a designation for a person representing the Organiser; this feature is available in paid Plans, where the Organiser can create more events and designate a Trainer as the person leading a given event;

Device – an electronic device, in particular a smartphone or tablet, through which the User accesses the App;

Service – services provided electronically by the Administrator via the Application, consisting in particular of enabling Users to meet, communicate and participate in Interactions;

User – a natural person using the App who has installed it on their mobile device and gained access to its functionality after registering an account on the App, holding the status of “Companion” or “Organiser”;

Interactions – any actions undertaken by a User within the App or between Users, including, in particular, establishing contacts, sending messages and reacting to other Users’ profiles;

Events – meetings, activities and events organised by an Organiser, the venue, time and proposed programme of which are published in the App, enabling other Users to take part as attendees. Events enable Users to build relationships outside the App. The Administrator is not liable for the organisation or conduct of Events, nor does it sell tickets or share in the costs and/or profits arising from Events.

§ 2. Terms of Use of the App

1. Only persons aged 18 or over may use the App.

2. During registration, the User is required to provide:
 - a) an email address,
 - b) a username (nickname),
 - c) a password,
 - d) date of birth,
 - e) city – location.
3. Age verification is based on a declaration made by the User during registration. Should the Administrator become aware that an account has been created by a person under the age of 18, the Administrator will immediately delete the account.
4. The User undertakes to provide information that is true and accurate. The Administrator shall not be liable for any false information provided by the User.
5. By publishing content on the App, the User grants the Administrator a non-exclusive, royalty-free licence to display, store, make technical copies of, and make such content available to other Users solely to the extent necessary for the functioning of the App.
6. By publishing photographs, descriptions, events, comments, messages intended for publication, graphic materials or other content on the App, the User declares that they hold all the rights necessary for their publication.
7. The User grants the Administrator a non-exclusive, royalty-free licence, valid for the duration of the content's publication on the Application, to store, reproduce for technical purposes, display, make publicly available to other Users and create backup copies, solely to the extent necessary for the functioning of the Application.
8. The Administrator is not liable for Users' actions or for content published by Users. The Administrator has the right to suspend a User's account in the event of a reasonable suspicion of a breach of the Terms and Conditions.
9. The User declares that they hold the rights to the photographs, descriptions and materials published on their Profile.
10. The Administrator exercises due care to ensure the proper functioning of the Application, but accepts no liability for any interruptions relating to the operation of the Application and external partners, including upgrades and maintenance work. The Administrator does not guarantee uninterrupted availability of the Application 24 hours a day.
11. The Administrator is not liable for content published by Users, nor for the achievement of specific results through the use of the Application.
12. Communication between Users is only possible once a friend request has been accepted.

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| A | User | may: |
| a) send | a friend | request, |
| b) accept | a friend | request, |
| c) decline an invitation. | | |

13. A User cannot send private messages to people who are not on their friends list.
14. The App enables users to contact Event Organisers via the features provided within the App.
15. Impersonating other people, businesses, organisations or the Administrator is prohibited.
16. It is not permitted to use AI functions to create content that misleads other Users, impersonates third parties or infringes their personal rights.

§ 3. User Profile and Payment Plans

1. During the registration process, the User selects the Profile they are interested in, which determines the available features for using the App and the Payment Packages. These options may be changed at any time.
2. Users may create the following Profile within the App:
 - a. **Companion – by selecting access to the “Meet People” account**
 - b. **Organiser – by selecting access to the “Create Events” account**
3. After selecting a Profile, the User selects a Payment Plan. The App is available in a free version and as paid Plans – subscriptions, renewed on a monthly basis. Prices for individual Plans may vary. Prices are always stated in the description of the relevant Plan within the App’s features. The detailed scope of functionality, prices, billing periods and any discounts are displayed in the App before a purchase is made.

Purchases of paid plans are made via the Apple App Store and Google Play. Billing, subscription renewal and cancellation are subject to the terms and conditions of the Apple App Store and Google Play respectively.

Companion Plans

a. FREE Plan:

- 1:1 chats with friends
- the ability to join one (1) group at a time
- cannot create your own groups
- choice of up to 5 interests on your profile
- 1 AI avatar per month

b. PLUS Plan:

- 1:1 chats with friends
- the ability to create one (1) group of your own
- join up to three (3) groups at the same time
- selection of up to 10 interests on your profile
- 5 AI avatars per month

c. PREMIUM Plan:

- 1:1 chats with friends
- create up to three (3) of your own groups
- no limit on joining groups
- the ability to add friends to groups
- choose up to 20 interests on your profile
- 15 AI avatars per month
- tag a Coach in up to 2 interests

d. VIP Plan

- 1:1 chats with friends
- Unlimited group creation
- no limits on groups or contacts
- adding friends to groups
- unlimited interests on your profile
- 30 AI avatars per month
- tag the Coach in up to 5 interests

Organiser Plans

a. Free Plan

- a maximum of 2 active Events at any one time
- basic dashboard view: active Events
- no messages to Event participants
- No broadcasts and no featured Events
- 1 hashtag/category per Event

b. PRO Plan

- up to 5 active Events at the same time
- extended dashboard view: active Events, drafts and registrations combined
- ability to send messages to Event participants
- no broadcast feature and no Event highlights
- up to 2 hashtags/categories per Event

c. PREMIUM Plan

- Unlimited number of active Events
- full dashboard overview: active Events, drafts, total registrations and attendance
- ability to send broadcasts to participants
- event highlights in the app
- up to 5 hashtags/categories per Event

d. ENTERPRISE Plan

- Unlimited number of active Events
- full dashboard overview: active Events, drafts, total registrations and attendance
- ability to send a broadcast to participants
- Event highlights in the app
- up to 5 hashtags/categories per Event
- support for multiple scenarios and custom actions
- the most comprehensive scope of reporting and communication

- scope of implementation determined on a case-by-case basis
 - customisable range of hashtags/event categories
4. The Administrator may periodically offer promotions, discounts or trial periods, the terms and conditions of which will be specified in the App on each occasion.
 5. **Account Registration:** once a Profile and Payment Plan have been selected and the required information has been provided, a User Account is created.
 - a. An **Organiser's Account** requires the following details:
 - Email address
 - Venue/company name
 - Password
 - Town
 - b. A **Companion account** requires the following details:
 - Email
 - Nickname / First name (publicly visible)
 - Password
 - Date of birth
 - Location / Town
 6. Your account will be registered once you have agreed to the Terms and Conditions and Privacy Policy and verified your email address. To activate your account, click on the activation link sent to the email address you provided during registration.
 7. The password reset function requires identity verification via the email address associated with the account.
 8. The administrator records information regarding account activation and security-related operations to the extent necessary to protect users and the system.
 9. Subsequent use of the App will require you to log in by entering your username (nickname) and password.
 10. **Profile details:** Users may voluntarily add details to their Profile to help other Users interact with them, such as a logo, city, location characteristics, atmosphere, category and description of the venue (in the case of an Organiser) or information regarding interests (in the case of a Companion).

The profile may include, in particular:

- a) a profile photo,
- b) an avatar generated by AI tools based on the User's description,
- c) an automatically generated graphic symbol containing the first letter of the User's first name or username,
- d) a BIO description of up to 250 characters,
- e) interests,
- f) additional information provided by the User.

The User may edit their Profile descriptions at any time.

Specifying interests is optional, but recommended to improve the quality of matches and recommendations.

11. The User may switch between the available Companion and Organiser Profiles to the extent permitted by the App's functionality. The detailed scope of functions assigned to each role is specified within the App's interface.

§ 4. Location and search range

1. The App uses location data provided by the User or obtained with their consent, in accordance with the provisions set out in the Privacy Policy.
2. The User may independently specify the search radius for other Users and events.
3. If the User does not specify their own search radius, the default search radius in the App is 50 km. The App does not disclose the User's exact home or current address.
4. The App provides a 'Nearby' screen, displaying Users and Events on a map.
5. The 'Nearby' feature may display:
 - a) the User's approximate location,
 - b) the User's age,
 - c) the User's name (username),
 - d) profile photo or avatar,
 - e) interests,
 - f) match percentage.
6. The visibility of this data depends on the privacy settings and the consents given by the User.
7. The matching algorithm is intended to assist and does not constitute automated decision-making that produces legal effects on the User.
8. The location displayed in the App may be approximate and does not indicate the User's exact whereabouts.

§ 5. Events

1. The App may display Events organised by Users – Organisers. The Event description must include information about the Event, the venue, the date, the capacity (optional), the price of the Event and hashtags (interests), to enable third parties with similar interests to find the Event.
2. Events may be free or paid.
3. For paid events (optional), a specific, fixed ticket price or a price range set by the Organiser may be displayed.
4. The USLY Administrator is not the organiser of the events featured in the App, unless expressly stated otherwise. USLY does not sell tickets or charge any other fees for Events — the Organiser may provide a link in the App to an external sales/booking platform. Payments for participation in Events are made directly to the Event Organiser or via a payment provider designated by them.
5. The Administrator may remove an Event either before or after publication if there is reasonable suspicion that the event is fictitious, constitutes an attempt at fraud, or breaches the law or these Terms and Conditions.

6. The 'For You' section displays Events:
 - a) taking place near the User,
 - b) from a selected region of Poland,
 - c) from across the country.
7. The 'My Events' section displays events marked by the User.
8. The User can receive reminders and notifications regarding events saved in the 'My Events' section.
9. The App may allow events to be added to the User's device calendar.
10. If the Organiser changes key details of an event, the App may automatically notify Users who have marked the event as of interest.
11. The Administrator may send security announcements, warnings about misuse and information about changes to the App's functionality.
12. As part of paid Plans, Users may create groups related to Events.
13. It is prohibited to post links in groups that promote events organised outside the USLY App. The Administrator may remove content that breaches this prohibition.
14. In particular, the USLY Administrator shall not be liable for the conduct of Events, the quality of their organisation, changes to Event dates, the cancellation of Events, ticket refunds, etc.
15. By accepting these Terms and Conditions, Users – Organisers – assume all risks and liability for the organisation, conduct, safety, all costs and any third-party claims relating to Events. Any complaints regarding Events should be addressed directly to the Organiser.
16. A User may specify their preferred age range for other Users whose profiles and Events will be displayed in the App. Age preferences are for guidance only and do not guarantee that only content meeting the specified criteria will be displayed.
17. Archived Events are stored for a period of 1 month from the end of the Event.
18. The Organiser has access only to the participants' data necessary for organising the Event.
19. The organiser does not receive participants' email addresses, unless otherwise required by law or with the User's separate consent.
20. The Organiser can only view data made available through the App's features, in particular the user's nickname.

§ 6. Content published by Users. Moderator's supervision.

1. The User bears full responsibility for the content published on the App.
2. It is prohibited to publish, share, upload or promote via the App any content:
 - a) that contravenes applicable law,
 - b) that is offensive, insulting, discriminatory or incites hatred,
 - c) inciting violence, terrorism or the commission of criminal offences,
 - d) infringes personal rights, copyright, intellectual property rights or other rights of third parties,

- e) containing harmful, dangerous, malicious or misleading links, software or files,
- f) constituting spam, automatically generated messages or unsolicited correspondence,
- g) containing nudity, pornography or content of an erotic nature,
- h) promoting sexual services, prostitution, sugar dating or other services of a similar nature,
- i) content of an explicitly sexual nature,
- j) promoting, offering or facilitating the sale, purchase or distribution of drugs, psychoactive substances, designer drugs or other intoxicating substances,
- k) promoting the illegal trade in weapons, ammunition, explosives or other dangerous items,
- l) promoting the sale of alcohol, tobacco products, e-cigarettes or other age-restricted products in a manner inconsistent with applicable law,
- m) constituting fraud, phishing, data theft, impersonation of other persons or organisations, or misleading other Users,
- n) containing advertisements, commercial offers or promotional material published without the Administrator's consent, in particular through the mass sending of messages, invitations or unsolicited commercial offers (spam),
- o) intended to circumvent the Application's security measures, obtain other Users' data or disrupt the proper functioning of the Application.

3. The Administrator moderates content published on the Application, including content relating to Events. The Administrator may refuse to publish an event or remove a published event if:
 - it breaches the Terms and Conditions,
 - it breaches the law,
 - it is a fictitious event,
 - it may lead to fraud,
 - it poses a threat to Users' safety,
 - is contrary to public decency.
4. In the event of a breach of these Terms and Conditions, the Administrator may immediately remove any content that breaches these Terms and Conditions, block its publication, restrict the functionality of the account, or suspend or permanently delete the account of the User who committed the breach. Where required by law, the Administrator may also pass on the relevant information to the competent public authorities.
5. The User acknowledges that content in breach of the Terms and Conditions may be marked with the message: 'Content has been blocked by USLY moderators'.

6. The Administrator may temporarily restrict or permanently block the account of a User who breaches the Terms and Conditions.
7. The User has the right to request that the Administrator review a decision concerning the removal of content, restriction of functionality or blocking of the Account. The Administrator shall consider the request within 14 days of the date of submission and inform the User of the outcome.
8. The Administrator moderates content published by Users in order to ensure the safe use of the Application and compliance with applicable laws and these Terms and Conditions.
9. Any User may report content, a profile, a message, a group or an Event that:
 - a) breaches the law,
 - b) breaches the provisions of these Terms and Conditions,
 - c) infringes the rights or personal interests of third parties,
 - d) may constitute an attempt at fraud, extortion or impersonation,
 - e) contains hate speech, threats, pornographic material, violence or other prohibited content.
10. Reports may be made via the 'Report' function available in the App or by email to the Administrator's email address.
11. The Administrator shall consider reports within a reasonable timeframe, taking into account the nature of the matter, the level of risk and the applicable legal provisions.
12. Users may report events which they believe to be false, fraudulent or in breach of the Terms and Conditions.
13. Following an assessment of the report, the Administrator may, in particular:
 - a) leave the reported content unchanged,
 - b) restrict the visibility of the content,
 - c) remove the content,
 - d) block the ability to publish specific content,
 - e) temporarily restrict the functionality of the account,
 - f) suspend or permanently delete the User's account.
14. The Administrator may take action on their own initiative if they receive reliable information regarding a breach of the law, these Terms and Conditions, or a threat to the safety of other Users.
15. A User whose content has been removed or whose account has been restricted or blocked has the right to request that the Administrator reconsider the matter.
16. A request for a review of the decision must be sent within 14 days of receiving notification of the measures taken, to the Administrator's email address specified in the Terms and Conditions.
17. The Administrator shall consider the appeal without undue delay and inform the User of the outcome of the review.
18. In the event of a reasonable suspicion of a criminal offence, a threat to life or health, a breach of third parties' rights, or where such an obligation arises from statutory provisions, the Administrator may provide the relevant public authorities with the information necessary to clarify the matter, to the extent required by applicable legislation.

19. The Administrator carries out moderation activities in accordance with the principles of fairness, proportionality and non-discrimination against Users, taking into account the nature of the breach and the need to ensure the safety of the USLY community.
20. The Administrator reserves the right to use tools to assist with moderation, including automated mechanisms for detecting spam, fake accounts, suspicious activity and content that may breach the Terms and Conditions or the law. Final decisions regarding the application of restrictive measures are made taking into account the circumstances of each individual case.
21. The Administrator publishes these moderation rules to ensure the transparency of the Application's operations in accordance with the requirements set out in Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on the Digital Services Act (DSA).

§ 7. Deletion of an account

1. A user may delete their account at any time by using the features available within the Application or by contacting the Administrator.
2. Deleting an account results in the loss of access to features that require an account.
3. The Administrator has the right to block or delete a User's account in the event of a breach of these Terms and Conditions.
4. The Administrator may delete an Account that has remained inactive for a period exceeding 24 months, after first notifying the User.
5. The deletion, encryption and archiving of data from a deleted account are carried out in accordance with the Privacy Policy.

§ 8. Subscriptions – renewal and cancellation

1. Paid subscription plans available in the App are purchased via the Apple App Store or Google Play Store, as applicable. The purchase of a subscription constitutes consent to the charging of a fee in accordance with the Payment Plans price list in force at the time of purchase and the terms and conditions of the relevant app store.
2. Subscriptions are renewable.
3. The fee for the next subscription period is charged automatically by the app store operator (Apple or Google), unless the User disables automatic subscription renewal before the start of the next billing period.
4. The User may opt out of automatic subscription renewal at any time via their account settings:
 - a) for iOS devices – in their Apple ID account settings,
 - b) for Android devices – in your Google Play account settings.
5. Cancelling automatic subscription renewal does not result in a refund of fees already charged for the current billing period. The User retains access to the features of the paid Plan until the end of the paid subscription period.
6. The Administrator does not collect payments directly from Users. All payments, settlements, refunds and complaints regarding transactions carried out via the Apple App

Store or Google Play Store are subject to the rules and procedures in force at the respective store operator.

7. If the law or the store operator's terms and conditions provide for a refund for a purchased subscription, a refund request should be submitted directly to Apple or Google in accordance with the applicable procedure.
8. Changing a subscription plan from a lower tier to a higher one, or from a higher tier to a lower one, may apply to the next billing period; the change does not take place automatically but is carried out in accordance with the rules applicable in the Apple App Store or Google Play Store. The Administrator has no influence over how such a change is processed.
9. The Administrator reserves the right to change the prices of subscription plans. Price changes do not affect subscription periods that have already been paid for and apply only from the next billing period, in accordance with the rules of the relevant app store.
10. Deleting an account in the App does not automatically cancel an active subscription. The User is required to disable automatic subscription renewal themselves in their Apple App Store or Google Play Store account settings.

§ 9. Marketing collaboration and promotions

1. The Administrator may run an ambassador programme, a referral programme and promotional campaigns. The Administrator may enter into marketing, partnership, sponsorship and streaming collaborations.
2. The detailed terms and conditions of each promotion, promotional code or ambassador programme are set out in separate terms and conditions.
3. Participation in a promotion constitutes acceptance of the terms and conditions of that promotion.
4. All marketing activities conducted via the App must comply with applicable law, the principles of social coexistence and ethical standards.
5. It is prohibited to promote content of a 'pato-streaming' nature, violence, hate speech or other content that may harm Users and affect the reputation of the App and the Administrator.

§ 10. Complaints and Contacting the Administrator

1. The User has the right to submit complaints regarding the functioning of the App, the services provided, paid subscription plans (to the extent falling within the Administrator's remit), account operations, content moderation and other matters relating to the use of the App.
2. Complaints should be submitted electronically to the following email address: kontakt@uslyapp.pl
3. A complaint should include at least:
 - a) the User's first name or username,

- b) the email address associated with the Account,
 - c) a description of the problem reported,
 - d) the date the problem occurred, if known,
 - e) the desired resolution of the matter (optional).
4. The Administrator may ask the User to provide additional information necessary to consider the complaint.
 5. The Administrator will consider the complaint without undue delay, no later than within 14 days of receipt. If it proves impossible to consider the complaint within this period for reasons beyond the Administrator's control, the User will be informed of the reasons for the delay and the expected date of a response.
 6. A response to the complaint will be sent to the email address from which it was submitted, unless the User specifies another method of contact.
 7. Complaints regarding payments, subscriptions, refunds and settlements processed via the Apple App Store or Google Play Store are dealt with in accordance with the rules of the relevant store operator. The Administrator is not a party to these transactions and is unable to issue refunds for amounts charged by Apple or Google.
 8. Lodging a complaint does not limit or exclude the User's rights under applicable law.

§ 11. Final provisions

1. The Administrator may amend these Terms and Conditions for valid reasons, including organisational, legal or technical reasons.
2. Users will be notified of any changes to the Terms and Conditions via the App.
3. The Administrator employs technical and organisational measures to ensure the security of the Application's data and infrastructure.
4. The Application's infrastructure may utilise network security services, cloud servers, traffic filtering mechanisms and application security measures. Administrative access to the systems is restricted to authorised persons.
5. The Operator applies access control mechanisms and a separation of duties in accordance with the principle of least privilege.
6. Location data is processed solely for the purposes of the Application's operation and is protected against unauthorised use.
7. The Administrator shall not be liable for any failure to perform or improper performance of the Services caused by force majeure, failures on the part of telecommunications operators, power cuts, cyber-attacks or other events beyond its control.
8. The Administrator may terminate the provision of the Service after giving prior notice to Users.
9. In matters not covered by these Rules, the provisions of Polish law shall apply.